

9:00 13	25CV471833	Greg Gordon vs. Lyft, Inc. et. al.	Defendant moves this Court to compel arbitration and stay proceedings. Plaintiff created a Lyft user account and agreed to arbitration should a dispute or claim arise. Plaintiff failed to file an opposition to Defendant's motion, Defendant's motion is GRANTED.
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Calendar Line 3

Case Name: *Lesniak v. County of Santa Clara, et al.*

Case No.: 24CV446754

On September 29, 2025, the Court [Hon. Pennypacker] filed an order sustaining defendants Daniel Little ("Little"), Damion Wright ("Wright") and Yazmina Letona's ("Letona") (collectively, "individual defendants") demurrer to plaintiff Alex Lesniak's ("Plaintiff") first amended complaint ("FAC") without leave to amend as to the first cause of action for violation of Labor Code section 1102.5. The Court also sustained defendant County of Santa Clara's ("County") demurrer to the first cause of action with leave to amend and Little, Wright, Letona and County's (collectively, "Defendants") demurrer to the second cause of action with leave to amend. As to County's demurrer to the first cause of action, the Court stated that "the applicable three-year statute of limitations bars action against Defendants' conduct prior to August 29, 2021," noting that "[d]espite the length and detail in some aspects of Plaintiff's allegations, there are insufficient facts alleged in the FAC to reasonably infer Defendants' conduct prior to August 29, 2021 was similar or connected to the alleged unlawful actions thereafter." (September 29, 2025 order sustaining Defs.' demurrer to the FAC, pp.6-8.) The Court also stated that "Plaintiff's allegations regarding Defendants' alleged retaliatory actions from July to September 2022 not only lack factual specificity as to what laws/rules/regulations were violated, but also facts supporting her reasonable belief that the undefined laws/rules/regulations were violated." (*Id.* at p.8.)

On October 20, 2025, Plaintiff filed a second amended complaint (“SAC”), again asserting causes of action for violation of Labor Code section 1102.5 and intentional infliction of emotional distress.

As to the allegations regarding events that occurred prior to August 29, 2021, Plaintiff argues that the continuing violation doctrine applies. However, as the Court previously stated in its September 29, 2025 order, these alleged acts are not sufficiently linked to any purported unlawful conduct that occurred within the limitations period. (See *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1056 (stating that “[u]nder [the continuing violation] doctrine, an employer is liable for actions that take place outside the limitations period if these actions are sufficiently linked to unlawful conduct that occurred within the limitations period”); see also *Richards v. CH2M Hill, Inc.* (2001) 26 Cal.4th 798, 823 (stating that a continuous violation require an “employer’s unlawful actions... [to be] sufficiently similar in kind”).) Plaintiff argues that *Yanowitz* indicated that the allegations regarding pre-August 29, 2021 actions remains relevant to establish motive, intent and context; however, the cited pages of the *Yanowitz* opinion merely discussed the applicability of the continuing violation doctrine which the Court does not find applicable here. The first cause of action for violation of Labor Code section 1102.5 does not allege a basis for it to be premised on the alleged actions prior to August 29, 2021.

The allegations regarding incidents from July 2022 through October 2022 and then December 2022 through July 2023 concern various actions and purported retaliatory conduct by Defendants. (See SAC, ¶¶ 82-121.) Again, Plaintiff asserts a violation of Labor Code section 1102.5, subdivision (b), which prohibits retaliation against an employee for disclosing information to a government or law enforcement agency, or to a person who has the authority to investigate, discover or correct the violation or noncompliance, or for providing information to any public body, “if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the

employee's job duties." (Lab. Code § 1102.5, subd. (b).) As previously stated above, the September 29, 2025 order expressly stated that "Plaintiff's allegations regarding Defendants' alleged retaliatory actions from July to September 2022 not only lack factual specificity as to what laws/rules/regulations were violated, but also facts supporting her reasonable belief that the undefined laws/rules/regulations were violated." The California Supreme Court has noted that "statutory causes of action must be pleaded with particularity." (*Covenant Care, Inc. v. Super. Ct. (Inclan)* (2004) 32 Cal.4th 771, 790.) Here, as with the FAC, the SAC fails to identify any laws, rules or regulations that Plaintiff believes was violated. The Court cannot be made to guess what Accordingly, the demurrer to the first cause of action for violation of Labor Code section 1102.5 on the ground that it fails to state facts sufficient to constitute a cause of action is SUSTAINED with 10 days leave to amend so as to allege facts after August 29, 2021 regarding Plaintiff's "reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation," as required by subdivision (b).

As to the second cause of action for intentional infliction of emotional distress, it is apparently based on the same allegations of the first cause of action as the second cause of action does not identify the "outrageous and unprivileged conduct" that is the basis for the cause of action. (See SAC, pp.37-38, ¶¶ 8-10.) In light of the Court's ruling with respect to the first cause of action, Defendants' demurrer to the second cause of action is likewise SUSTAINED with 10 days leave to amend.

Defendants shall prepare and submit a proposed final order consistent with this tentative ruling.

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Case Name: *Bernadette Erlach v. General Motors LLC*
Case No.: 24CV454184